

Warsaw, December 19, 2022

Decision

DKE.561.26.2022

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2022, item 2000, as amended), Article 7 paragraphs 1 and 2, Article 60 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781), and based on Article 57 paragraph 1 letters a) and h) and Article 58 paragraph 2 letter b), in connection with Article 83 paragraph 6 of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data (OJ EU L 119 of 04.05.2016, p. 1, OJ EU L 127 of 23.05.2018, p. 2, and OJ EU L 74 of 04.03.2021, p. 35), after conducting an ex officio administrative procedure regarding the imposition of an administrative monetary penalty on Mr. M. S., residing at ul. (...) R., the President of the Personal Data Protection Office issues a reprimand to Mr. M. S., residing at ul. (...) R., for non-compliance with the order specified in point 1 of the administrative decision of the President of the Personal Data Protection Office dated April 13, 2022 (ref. DKN.523.3.2021).

JUSTIFICATION

Factual Background

On April 13, 2022, the President of the Personal Data Protection Office issued an administrative decision (ref. DKN.523.3.2021), hereinafter referred to as the "Decision," ordering Mr. M. S., residing at ul. (...) R., to cease processing personal data of Mr. D. G. and Ms. J. G. (residing at ul. ... R.) through video surveillance using cameras installed on a lighting pole, which cover the access road constituting plot no. (...). The Decision was deemed delivered on May 4, 2022, based on the fiction of delivery, in accordance with Article 44 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2022, item 2000, as amended), hereinafter also referred to as "k.p.a." The Decision is final and has not been appealed by the parties to the proceedings to the Provincial Administrative Court, thus it became legally binding on June 4, 2022.

Due to the lack of confirmation of compliance with the order of the Decision, the President of the Personal Data Protection Office, by letter dated July 15, 2022 (ref. DKE.560.92.2022), summoned Mr. M. S. to provide explanations and present evidence of compliance with the Decision. Since Mr. M. S. did not collect the Decision, and therefore could not familiarize himself with its content, a copy of the Decision was attached to the aforementioned summons of July 15, 2022.

The letter dated July 15, 2022, was received on July 21, 2022, by an adult household member at the recipient's place of residence, and thus, in accordance with the provisions of Article 43 of the k.p.a., it was considered duly and effectively delivered to Mr. M. S.

Since no explanations or evidence confirming compliance with the order of the Decision were submitted to the Personal Data Protection Office, the President of the Personal Data Protection Office, by letter dated October 10, 2022, with reference DKE.560.92.2022, initiated the present administrative procedure regarding the imposition of an administrative monetary penalty on Mr. M. S. based on Article 83 paragraph 6 of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35), hereinafter referred to as "Regulation 2016/679," in connection with the non-compliance with the order issued by the supervisory authority in the Decision.

The letter dated October 10, 2022, informing about the initiation of this procedure was personally received by Mr. M. S. on October 18, 2022. The letter contained a notice that non-compliance with the order issued by the supervisory authority is subject to an administrative monetary penalty of up to

20,000,000 euros, based on Article 83 paragraph 6 of Regulation 2016/679. The President of the Personal Data Protection Office also summoned Mr. M. S. to present, within 7 days from the date of delivery of the letter, proof of tax settlement of all his income for the year 2021, that is, to present the appropriate PIT declaration or to send other financial information that Mr. M. S. deems relevant for determining the penalty in a manner proportional to his ability to pay it. The President of the Personal Data Protection Office informed that failure to provide the aforementioned data would result in the President of the Personal Data Protection Office determining the basis for the penalty in an estimated manner, based on Article 101 a) of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781). At the same time, in this letter, the President of the Personal Data Protection Office informed that if Mr. M. S. provides explanations and evidence of compliance with the order issued by the President of the Personal Data Protection Office in the Decision, this circumstance may have a mitigating effect on the amount of the administrative monetary penalty imposed in this procedure or may lead to the decision to refrain from imposing it.

In response to the aforementioned letter informing about the initiation of the procedure regarding the imposition of an administrative...

monetary penalty, Mr. M. S. submitted explanations regarding the execution of the Decision in a letter dated October 24, 2022. Mr. M. S. explained that he executed the Decision immediately after receiving the summons to provide explanations under reference DKE.560.92.2022, i.e., on July 21, 2022. In executing the Decision, he adjusted two cameras mounted on a lighting pole in such a way that the images from these cameras cover only his private property and his house. The images from these cameras do not cover the common road (the access road constituting plot no. (...)). To confirm the aforementioned actions taken, Mr. M. S. sent photos of the images from the cameras as well as photos of the camera setup installed on the pole. Furthermore, in a letter dated November 9, 2022, he supplemented his explanations indicating that currently the cameras are positioned in such a way that they only observe the entrance and driveway to his house. The cameras do not have a rotating function and do not have a microphone. They are fixed-position cameras. The images from the cameras are not archived on a recorder (there is no hard drive). Evidence of actions taken regarding the execution of the decision on July 21, 2022, are the photos from the cameras sent to the Personal Data Protection Authority on August 5, 2022, via email (...), which were subsequently confirmed by Mr. M. S. in a letter dated October 24, 2022, in a manner prescribed by law.

Mr. M. S. requested the President of the Personal Data Protection Office to refrain from imposing an administrative monetary penalty for non-compliance with the order issued by the supervisory authority in the Decision. After reviewing all the evidence collected in the case, the President of the Personal Data Protection Office considered the following.

Legal Justification

According to Article 57(1)(a) of Regulation 2016/679, the President of the Personal Data Protection Office – as the supervisory authority within the meaning of Article 51 of Regulation 2016/679 – monitors and enforces the application of this regulation within its territory. As part of its competencies, the President of the Personal Data Protection Office conducts proceedings regarding the application of this regulation (Article 57(1)(h)). To enable the realization of its tasks, the President of the Personal Data Protection Office has a number of corrective powers specified in Article 58(2) of Regulation 2016/679, including the power to order the controller or processor to bring processing operations into compliance with the provisions of this regulation, and in appropriate cases, to specify the manner and time frame (Article 58(2)(d)).

According to the accountability principle formulated in Article 5(2) of Regulation 2016/679, the controller is responsible for complying with the provisions of paragraph 1 of this article (including – in accordance with the so-called legality principle – for processing personal data "lawfully") and must be able to demonstrate compliance. The application of the accountability principle in this case means that Mr. M. S. is obliged – particularly in the proceedings before the President of the Personal Data Protection Office – to prove the execution of the order of the decision, which would be equivalent to restoring the processing of personal data to a lawful state. Such implications of the accountability

principle are confirmed by the doctrine of data protection law, according to which: "The statement that the controller should be able to demonstrate compliance with the principles can be interpreted as imposing on the controller the burden of proof regarding compliance with the principles of data processing. In the event of a dispute with the data subject or with the supervisory authority, the controller should be able to present evidence that it complies with the principles. Such evidence may primarily consist of documents related to the processing and protection of data." (P. Fajgielski [in:] Commentary on Regulation No. 2016/679 on the protection of natural persons in relation to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) [in:] General Data Protection Regulation. Data Protection Act. Commentary, Warsaw 2018).

According to Article 83(6) of Regulation 2016/679, non-compliance with an order issued by the supervisory authority under Article 58(2) is subject to an administrative monetary penalty of up to EUR 20,000,000, and in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

The President of the Personal Data Protection Office, acting under Article 58(2)(b) of Regulation 2016/679, may also consider it justified to issue a reprimand to the controller in the case of a violation of the provisions of the regulation by processing operations, in this case for non-compliance with an order issued by the supervisory authority under Article 58(2) of Regulation 2016/679. According to Recital 148 of Regulation 2016/679, to make the enforcement of the provisions of the regulation more effective, sanctions, including administrative monetary penalties, should be imposed for violations, in addition to or instead of appropriate measures imposed under this regulation by the supervisory authority. If the violation is minor, the monetary penalty may be replaced by a reprimand. However, due consideration should be given to the nature, gravity, and duration of the violation, whether the violation was not intentional, the actions taken to minimize harm, the degree of responsibility, or any relevant previous violations, the manner in which the supervisory authority became aware of the violation, compliance with measures imposed on the controller or processor, adherence to codes of conduct, and any other aggravating or mitigating factors.

According to Article 44 of the Code of Administrative Procedure, in the event of impossibility...

****Delivery of documents in the manner specified in Articles 42 and 43 of the Administrative Procedure Code (k.p.a.)****

The postal operator, as understood under the Act of November 23, 2012 - Postal Law, retains the document for a period of 14 days at its postal facility in the case of delivery by the postal operator. A notification of the document's availability, along with information about the possibility of its collection within seven days from the date of the notification being left at the location specified in § 1, is placed in the outgoing mailbox or, when this is not possible, on the door of the addressee's apartment, office, or other premises where the addressee conducts professional activities, or in a visible place at the entrance to the addressee's property. In the event that the shipment is not collected within this period, a repeated notification of the possibility of collecting the shipment is left, with a deadline not exceeding fourteen days from the date of the first notification. Delivery is considered to have been made upon the expiration of the 14th day from the date of the first delivery attempt, and the document is retained in the case files.

The purpose of the institution of substitute delivery under Article 44 of the k.p.a., which applied to documents directed by the Authority to Mr. M. S., is to prevent the obstruction of this proceeding by deliberately evading the receipt of correspondence. The institution of substitute delivery is based on the legal fiction that the delivery of a document has occurred, which in fact did not take place (see the judgment of the Supreme Administrative Court (NSA) of February 8, 2021, case no. I OSK 3697/18). It should be emphasized that the legal presumption of delivery of the document using the legal fiction of delivery under Article 44 of the k.p.a. has the effect that one cannot effectively raise the argument that the content of the document did not reach the addressee (see the judgment of the Provincial Administrative Court (WSA) in Łódź of February 1, 2022, case no. III SA/Łd 897/21), unless the application of Article 44 of the k.p.a. was flawed due to non-compliance with the individual

requirements of the substitute delivery procedure.

****Legal Assessment****

Referring the above provisions to the established state of facts in the case, it should first be emphasized that the burden of proving the execution of the order of the decision regarding the processing of personal data based on Regulation 206/679 rests with the data controller - this follows directly from the principle of accountability established in Regulation 2016/679. The decision was deemed delivered on May 4, 2022. Since it was a final decision, it became enforceable on the day of delivery, i.e., May 4, 2022. Mr. M. S., as the party obliged to execute the Decision, did not comply with the order of the Decision on the day it became enforceable, i.e., when the obligation to execute it arose. During the course of these proceedings, it was established that the order of the Decision was executed by the obligated party on July 21, 2022. Therefore, it must be stated that Mr. M. S. did not comply with the order issued by the President of the Personal Data Protection Office (UODO) in the Decision from May 4, 2022, until the moment he executed the order on July 21, 2022.

However, in the opinion of the President of UODO, the state of violation consisting of non-compliance with the order issued in the Decision lasted relatively briefly. Additionally, the violation was of an unintentional nature. The unintentionality of the violation is evidenced by the fact that Mr. M. S. executed the order of the Decision immediately after he first became aware of the obligation imposed on him by the order of the Decision, i.e., on the day he received information about the initiation of these proceedings. Furthermore, in these proceedings, the President of UODO did not find circumstances indicating that Mr. M. S. intentionally evaded the execution of the order issued by the Decision.

In light of the above circumstances, the President of UODO deemed it justified to issue a reprimand to Mr. M. S. regarding the established violation of non-compliance with the order issued in the Decision. The President of UODO concluded that in this case, issuing a reprimand, in light of the criteria specified in Article 83(2) of Regulation 2016/679, would be sufficient and at least as "effective, proportionate, and deterrent" as imposing a monetary penalty (see Article 83(1) of Regulation 2016/679). It should also be noted that in the event of a similar occurrence in the future, any reprimand issued by the President of UODO against Mr. M. S. will be taken into account when assessing the grounds for the potential imposition of an administrative penalty, in accordance with the principles set out in Article 83(2) of Regulation 2016/679.

In this factual and legal state, the President of UODO decided as stated in the operative part of this decision.

****Instruction****

The decision is final. The party has the right to appeal to the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery, through the President of UODO (address: ul. Stawki 2, 00 - 193 Warsaw). The fee for the appeal is 200 PLN. In the proceedings before the Provincial Administrative Court, the party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the party's request submitted before the initiation of the proceedings or during the proceedings. The application is free of court fees.

****Print Article****

****Metadata****

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